

		(2) file a joint status report, no longer than five pages, indicating whether court intervention remains the only option to resolve this discovery dispute and, if so, which responses remain at issue, no later than five court days before the hearing. The Court stated: “Failure to comply with this order may result in sanctions against the non-compliant party and/or their counsel pursuant to Code of Civil Procedure section 177.5.” Both parties did not comply with the Court’s order to submit a joint status report. Accordingly, the hearing is CONTINUED to _____ at 10:00am in Department C33, to allow the parties/counsel to meet and confer as previously ordered; i.e., the parties/counsel are to meet and confer in person, telephonically or over remove teleconference (NOT EMAIL OR LETTER). If Defendant agrees to serve further responses, Defendant shall serve verified further responses no later than nine court days before the hearing. If after meeting and conferring further and in good faith, items remain in dispute, the parties/counsel are to file a JOINT STATUS REPORT identifying the items remaining in dispute and the parties’ positions no later than five court days before the hearing. If the parties/counsel fail to meet and confer as ordered, the Court will consider imposition of further sanctions pursuant to Code of Civil Procedure section 177.5, not only for disobedience to the Court’s 5/21/26 order but for this order as well. Clerk to give notice
11	25-01458863 <i>Satin vs. HH Law Firm</i>	1) Motion to Compel Deposition (Oral or Written) 2) Motion to Compel Further Responses to Special Interrogatories 3) Motion to Compel Production 4) Motion to Compel Production <u>Motion #1</u> The motion of plaintiff Ken Satin for an order compelling defendant HH Law Firm to serve a further response to the first set of special interrogatories is CONTINUED to _____, 2026 at 10:00 a.m. in Department C33. Counsel for both parties are directed to meet and confer “either in person, by telephone, or by videoconference” and specifically discuss the set of special interrogatories and the answers and objections. After that session, counsel for both parties are to submit a joint statement detailing the efforts they engaged in and setting forth the items still in dispute. This joint statement is to be filed no later than 10 days before the continued hearing. <u>Discussion.</u> Plaintiff Ken Satin moves under Code Civ. Proc. § 2030.300(a) for an order compelling defendant HH Law Firm to serve a further response without objection to the first set of special interrogatories. Although the caption of the motion references a request

for a monetary sanction, the notice of motion does not contain such a request, which is required for sanctions to be awarded. See Code Civ. Proc. § 2023.040. Defendant opposes the motion and asks for a monetary sanction against plaintiff.

Like the other separate statements filed by moving plaintiff, the separate statement filed in support of this motion (ROA 112) is generically labeled as a “separate statement of items in dispute in support of motion to compel defendant HH Law Firm to provide further responses to discovery requests.” It also contains a title on the first page referring form interrogatories, rather than special interrogatories. Nevertheless, it is 119 pages long and indicates that plaintiff seeks further responses to special interrogatories 1 through 25, which may be all special interrogatories in the set. (Defendant’s responsive separate statement (ROA 179) is 101 pages long.)

A motion to compel a further response to a set of special interrogatories must be accompanied by a meet and confer declaration under Code Civ. Proc. § 2016.040. Code Civ. Proc. § 2030.310(b). “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” Code Civ. Proc. § 2016.040(a).

Plaintiff submitted the declaration of attorney Alex DiBona in support of this motion and the three other discovery motions filed on the same day. (ROA 129.) In this declaration, attorney DiBona gives the following one-paragraph statement regarding his meet and confer efforts:

I have met and conferred many times through electronic mail and telephonically with Defendant’s Counsel of Record, Fadi Rasheed, most recently Defendant’s counsel of record [sic] promised substantive responses to the discovery and that he would send a proposed protective order. However, as of the date of the drafting of this declaration, they have not done so. Attached hereto as Exhibit 9 is a true and correct copy of the meet and confer correspondence.

This declaration hardly complies with the requirements of sections 2016.040 and 2030.300. Among other things, section 2016.040 specifies that meet and confer efforts must be made in person, by telephone, or by videoconference. Thus, sending email correspondence does not suffice – not even if the correspondence is “detailed.” Also, the declaration does not show any efforts by Attorney DiBona to resolve issues specific to this motion, i.e., issues relating to the answers or objections to each of the 25 special interrogatories.

Counsel for the parties may well resolve the issues if they were directed to meet and confer “either in person, by telephone, or by videoconference” and specifically discuss the special interrogatories and the answers and objections as required by sections 2016.040 and 2030.300.

Motion #2

The motion of plaintiff Ken Satin for an order compelling defendant HH Law Firm to serve a further response to the first set of requests for production is CONTINUED to _____, 2026 at 10:00 a.m. in Department C33.

Counsel for both parties are directed to meet and confer “either in person, by telephone, or by videoconference” and specifically discuss the set of requests for production and the answers and objections. After that session, counsel for both parties are to submit a joint statement detailing the efforts they engaged in and setting forth the items still in dispute. This joint statement is to be filed no later than 10 days before the continued hearing.

Discussion. Plaintiff Ken Satin moves under Code Civ. Proc. § 2031.310(a) for an order compelling defendant HH Law Firm to serve a further response without objection to the first set of requests for production. Defendant opposes the motion.

A motion to compel a further response to a set of requests for production must both: (1) set forth specific facts showing good cause justifying the discovery sought by the demand; and (2) be accompanied by a meet and confer declaration under Code Civ. Proc. § 2016.040. Code Civ. Proc. § 2031.310(b).

This motion is supported by the same declaration by Attorney Alex DiBona that was submitted in support of motion #1, which was the motion to compel defendant HH Law Firm to serve a further response to the first set of special interrogatories. As discussed there, the declaration did not come close to meeting the requirements of section 2016.040.

Motion #3

The motion of plaintiff Ken Satin for an order compelling defendant Hani Habbas to serve a further response to the first set of requests for production is CONTINUED to _____, 2026 at 10:00 a.m. in Department C33.

Counsel for both parties are directed to meet and confer “either in person, by telephone, or by videoconference” and specifically discuss the set of requests for production and the answers and objections. After that session, counsel for both parties are to submit a joint statement detailing the efforts they engaged in and setting forth the items still in dispute. This joint statement is to be filed no later than 10 days before the continued hearing.

Discussion. Plaintiff Ken Satin moves under Code Civ. Proc. § 2031.310(a) for an order compelling defendant Hani Habbas to serve a further response without objection to the first set of requests for production. Defendant opposes the motion.

A motion to compel a further response to a set of requests for production must both: (1) set forth specific facts showing good cause justifying the discovery sought by the demand; and (2) be accompanied by a meet and confer declaration under Code Civ. Proc. § 2016.040. Code Civ. Proc. § 2031.310(b).

This motion is supported by the same declaration by Attorney Alex DiBona that was submitted in support of motion #1, which was the motion to compel defendant HH Law Firm to serve a further response to the first set of special interrogatories. As discussed there, the declaration did not come close to meeting the requirements of section 2016.040.

Motion #4

The motion of defendants HH Law Firm and Hani Habbas for an order compelling the deposition of plaintiff Ken Satin and imposing a monetary sanction of \$4275 against plaintiffs Ken Satin and Advocate Law Firm, P.C., is DENIED. However, counsel for the parties are DIRECTED to meet and confer about deposition dates and determine a mutually convenient date for the deposition that is within 25 days of the hearing.

Discussion. Defendants move under Code Civ. Proc. § 1987.1 for an order compelling the deposition of plaintiff Satin. Defendants also move under Code Civ. Proc. §§ 2025.450(g)(1) and 2023.030 for a monetary sanction of \$4275 against both plaintiffs. Plaintiffs oppose the motion, contending that they have provided dates for the deposition, which moots the motion. However, by plaintiffs' own admission, the proposed dates for the deposition are within 45 days of the hearing.

As noted, the authority cited for the motion is Code Civ. Proc. § 1987.1. That Code section relates to quashing or compelling compliance with subpoenas served on a witness and defendants did not serve plaintiffs with a subpoena for the deposition of plaintiff Satin – they served notices for his deposition, which were appropriate given his standing as a party to the action.

Nevertheless, “[t]he service of a deposition notice under [Code Civ. Proc. §] 2025.240 is effective to require any deponent who is a party to the action or an officer, director, managing agent, or employee of a party to attend and to testify, as well as to produce any document, electronically stored information, or tangible thing for inspection and copying.” Code Civ. Proc. § 2025.280(a). Thus, by simply serving the deposition notices, plaintiff Satin was obligated to appear for deposition, notwithstanding the objections he served, which apparently related to the dates noticed for the deposition.

Under subdivision (a) of Code Civ. Proc. § 2025.450, “[i]f, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any

		document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” Under subdivision (b) of section 2025.450, the motion must: (1) set forth specific facts showing good cause justifying the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice; and (2) be accompanied by a meet and confer declaration under Code Civ. Proc. § 2016.040, or, when the deponent fails to attend the deposition and produce the documents, electronically stored information, or things described in the deposition notice, by a declaration stating that the petitioner has contacted the deponent to inquire about the nonappearance. Here, plaintiff Satin has not refused to appear for deposition and defendants have not taken a certificate of non-appearance for him. Counsel for the parties have simply disagreed about the dates for the deposition and the sequence of discovery. Plaintiffs contend that the motion is moot because their counsel has provided dates for the deposition that are within 45 days of the hearing. This is not good enough. Despite plaintiffs’ insistence that the deposition should be taken after defendants serve their written responses to discovery, the Code provides that “[e]xcept as otherwise provided by a rule of the Judicial Council, a local court rule, or a local uniform written policy, the methods of discovery may be used in any sequence, and the fact that a party is conducting discovery, whether by deposition or another method, shall not operate to delay the discovery of any other party.” Thus, while the Court cannot grant the motion and compel the deposition and impose sanctions, counsel should resolve the dispute amicably.
12	25-01463695 <i>Sobhani vs. Stater Bros. Markets</i>	Motion for Summary Judgment and/or Adjudication Defendant Stater Bros. Markets’ Motion for Summary Judgment is GRANTED. “In order to establish liability on a negligence theory, a plaintiff must prove duty, breach, causation and damages. [¶] A store owner exercises ordinary care by making reasonable inspections of the portions of the premises open to customers, and the care required is commensurate with the risks involved.” (<i>Ortega v. Kmart Corp.</i> (2001) 26 Cal.4th 1200, 1205 [cleaned up].) “The elements of a cause of action for premises liability are the same as those for negligence.” (<i>Castellon v. U.S. Bancorp</i> (2013) 220 Cal.App.4th 994, 998.) Defendant has satisfied its burden of disproving the element of duty. Defendant submits the Reciprocal Easement and Operation Agreement (the Agreement). The Agreement provides: “the Operator shall maintain the Common Area of the Shopping Center in accordance with the